

Santosh Sonkar v. U.P. Power Corporation Limited and 3 Others

High Court of Judicature at Allahabad · Division Bench · 26 April 2023 · WRIT - C No. 11131 of 2023 · **Disposed on withdrawal; fresh order after hearing under the Code**

HEADNOTE

Writ against a Section 3 recovery notice and a consequential order for Rs.4,03,633 disposed after the licensee stated that the recovery stood withdrawn and that a fresh order would be passed after objections and hearing. Liberty reserved to pass that order strictly under the Electricity Supply Code, 2005. The demand was not decided.

FACTUAL SUMMARY

Santosh Sonkar challenged a demand notice dated 10 August 2022 under Section 3 of the U.P. Government Electrical Undertaking (Recovery of Dues) Act, 1958, and a recovery order dated 18 October 2022 for Rs.4,03,633 and other charges. The Court asked the licensee whether a final assessment had been passed and whether the U.P. Electricity Supply Code had been followed, and restrained coercive action. That interim order was later extended. The licensee then stated that the impugned recovery had been withdrawn.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.4(f)

Fresh order after objections and hearing

HOLDING

Where the licensee withdraws the impugned recovery and states that a fresh order will be passed after the consumer is allowed to file objections and be heard, the writ is disposed with liberty to pass that order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 3

PRINCIPLE TAGS

fresh-order-strictly-under-supply-code

The Court recorded the licensee's withdrawal of the recovery and its undertaking to hear objections, and disposed the writ with liberty to pass a fresh order strictly under the Electricity Supply Code, 2005, without adjudicating the demand. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE RS.4,03,633 DEMAND, AND WHETHER THE WITHDRAWN RECOVERY HAD FOLLOWED THE SUPPLY CODE

The existing recovery was withdrawn by the licensee. Any fresh order, after objections and hearing, was left to be passed under the Code. ¶ 3